

On January 7, 2026, Respondent filed a Request for Order (RFO) and his Income and Expense Declaration. All required documents were served on January 29th.

On March 10th, Petitioner filed her Responsive Declaration to Request for Order and her Income and Expense Declaration. They were served on March 9th. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made March 6th the last day for filing the Responsive Declaration therefore it is late filed and cannot be considered by the court.

The parties are ordered to appear for the hearing.

TENTATIVE RULING #2: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.